

COURT OF COMMON PLEAS OF PHILADELPHIA COUNTY

DOCKET



Docket Number: CP-51-CR-0000519-2024

CRIMINAL DOCKET

Court Case

Commonwealth of Pennsylvania

v.

Stewart Nelson

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CASE INFORMATION

Cross Court Docket Nos: CP-11-MD-0000755-2024

Judge Assigned: Cianfrani, Deborah D.

Date Filed: 01/25/2024

Initiation Date: 01/25/2024

OTN: U 290254-6

LOTN:

Originating Docket No: MC-51-CR-0019284-2023

Initial Issuing Authority: Jacquelyn Frazier-Lyde

Final Issuing Authority:

Arresting Agency: Philadelphia Pd

Arresting Officer: Terry, John C.

Complaint/Citation No.: 2335061292-0019284

Incident Number: 2335061292

County: Philadelphia

Township: Philadelphia City

Case Local Number Type(s)

Case Local Number(s)

Originating Docket Number

MC-51-CR-0019284-2023

District Control Number

2335061292

Originating Document Number

2335061292-0019284

STATUS INFORMATION

<u>Case Status:</u>	<u>Status Date</u>	<u>Processing Status</u>	<u>Arrest Date:</u>
Closed	10/18/2024	Completed	10/26/2023
	09/27/2024	Awaiting Violation of Probation Hearing	
	09/13/2024	Sentenced/Penalty Imposed	
	09/13/2024	Awaiting Sentencing	
	04/09/2024	Awaiting Scheduling Conference	
	01/31/2024	Awaiting Pre-Trial Conference	
	01/25/2024	Awaiting Filing of Information	

Complaint Date: 10/27/2023

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CALENDAR EVENTS

<u>Case Calendar</u>	<u>Schedule</u>	<u>Start</u>	<u>Room</u>	<u>Judge Name</u>	<u>Schedule</u>
<u>Event Type</u>	<u>Start Date</u>	<u>Time</u>			<u>Status</u>
Formal Arraignment	02/07/2024	11:00 am	1104	Trial Commissioner Cynthia S. Gregg	Scheduled
Pre-Trial Conference	02/20/2024	9:00 am	905	Judge Zachary C. Shaffer	Scheduled
Pretrial Bring Back	04/09/2024	9:00 am	905	Judge Zachary C. Shaffer	Scheduled
Scheduling Conference	05/20/2024	9:00 am	1108	Judge Deborah D. Cianfrani	Continued
Scheduling Conference	06/04/2024	9:00 am	1108	Judge Deborah D. Cianfrani	Scheduled
Waiver Trial	09/13/2024	9:00 am	1108	Judge Deborah D. Cianfrani	Scheduled
Violation of Probation	10/04/2024	9:00 am	1108	Judge Deborah D. Cianfrani	Scheduled
Payment Plan Conference	11/06/2024	10:00 am	378		Scheduled
Payment Plan Conference	06/13/2025	1:00 pm	378		Scheduled
Payment Plan Conference	09/02/2025	1:00 pm	378		Scheduled
Payment Plan Conference	03/16/2026	10:00 am	378		Scheduled

DEFENDANT INFORMATION

Date Of Birth: 10/09/1957 City/State/Zip: Philadelphia, PA 19120

CASE PARTICIPANTS

<u>Participant Type</u>	<u>Name</u>
Defendant	Nelson, Stewart
Probation Officer	Burns, Megan

BAIL INFORMATION

Nelson, Stewart

Nebbia Status: None

<u>Bail Action</u>	<u>Date</u>	<u>Bail Type</u>	<u>Originating Court</u>	<u>Percentage</u>	<u>Amount</u>
Set	01/25/2024	Monetary	Common Pleas	10.00%	\$25,000.00

CHARGES

<u>Seq.</u>	<u>Orig Seq.</u>	<u>Grade</u>	<u>Statute</u>	<u>Statute Description</u>	<u>Offense Dt.</u>	<u>OTN</u>
2	2	F2	18 § 2718 §§ A1	Strangulation - Applying Pressure to Throat or Neck	09/22/2023	U 290254-6
4	4	M2	18 § 2701 §§ A	Simple Assault	09/22/2023	U 290254-6

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DISPOSITION SENTENCING/PENALTIES

Disposition

<u>Case Event</u>	<u>Disposition Date</u>	<u>Final Disposition</u>	
<u>Sequence/Description</u>	<u>Offense Disposition</u>	<u>Grade</u>	<u>Section</u>
<u>Sentencing Judge</u>	<u>Sentence Date</u>	<u>Credit For Time Served</u>	
<u>Sentence/Diversion Program Type</u>	<u>Incarceration/Diversionary Period</u>	<u>Start Date</u>	
<u>Sentence Conditions</u>			
Lower Court Proceeding (generic)			
Preliminary Hearing	01/24/2024	Not Final	
2 / Strangulation - Applying Pressure to Throat or Neck	Held for Court	F2	18 § 2718 §§ A1
4 / Simple Assault	Held for Court	M2	18 § 2701 §§ A
Proceed to Court	Defendant Was Not Present		
Information Filed	01/26/2024	Not Final	
2 / Strangulation - Applying Pressure to Throat or Neck	Proceed to Court	F2	18 § 2718 §§ A1
4 / Simple Assault	Proceed to Court	M2	18 § 2701 §§ A
Guilty Plea - Negotiated			
Waiver Trial	09/13/2024	Final Disposition	
2 / Strangulation - Applying Pressure to Throat or Neck	Guilty Plea - Negotiated	F2	18 § 2718 §§ A1
Cianfrani, Deborah D.	09/13/2024		
Confinement	Min of 11.00 Months 15.00 Days		
	Max of 23.00 Months		
	11 1/2 - 23 months		
Defendant paroled immediately. Credit to be calculated by the Phila. Prison System You must NOT possess firearms (including replica guns) or any other deadly weapons, possess, use, sell or distribute controlled substances of any kind. You are not permitted to leave Philadelphia without approval of your Probation/Parole Officer (Additional travel requirements apply to Megan's Law) You must report to your Probation/Parole Officer as directed and permit your Officer to visit you at your home of place of employment. Seek and maintain employment and obey all criminal laws and city ordinances. Notify your Officer within 15 days of any new arrest, change of address or change in employment. To stay away from victim(s). Supervision Fee Waived THE DEFENDANT IS TO COMPLETE BATTERERS TREATMENT OR DOMESTIC VIOLENCE TREATMENT/COUNSELING Probation			
	Max of 2.00 Years		
	2 years		
To be supervised under the Domestic Violence Unit.			
4 / Simple Assault	Guilty Plea - Negotiated	M2	18 § 2701 §§ A
Cianfrani, Deborah D.	09/13/2024		

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DISPOSITION SENTENCING/PENALTIES

Disposition

Case Event

Sequence/Description

Sentencing Judge

Sentence/Diversion Program Type

Sentence Conditions

Confinement

Credit to be calculated by the Phila. Prison System

Defendant paroled immediately.

To stay away from victim(s).

Disposition Date

Offense Disposition

Sentence Date

Incarceration/Diversionary Period

Min of 11.00 Months 15.00 Days

Max of 23.00 Months

11 1/2 - 23 months

Final Disposition

Grade Section

Credit For Time Served

Start Date

LINKED SENTENCES:

Link 1

CP-51-CR-0000519-2024 - Seq. No. 2 (18 § 2718 §§ A1) - Probation is Consecutive to

CP-51-CR-0000519-2024 - Seq. No. 2 (18 § 2718 §§ A1) - Confinement

Link 2

CP-51-CR-0000519-2024 - Seq. No. 4 (18 § 2701 §§ A) - Confinement is Concurrent with

CP-51-CR-0000519-2024 - Seq. No. 2 (18 § 2718 §§ A1) - Confinement

COMMONWEALTH INFORMATION

Name:

Supreme Court No:

ATTORNEY INFORMATION

Name:

Defender Association of

Philadelphia

Public Defender

Supreme Court No:

Rep. Status:

Active

Phone Number(s):

Address:

ENTRIES

Sequence Number	CP Filed Date	Document Date	Filed By
1	01/25/2024		Court of Common Pleas - Philadelphia County
Held for Court			
3	01/25/2024		Frazier-Lyde, Jacquelyn
Bail Set - Nelson, Stewart			
1	01/26/2024		Krasner, Larry
Information Filed			

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<u>Sequence Number</u>	<u>CP Filed Date</u>	<u>Document Date</u>	<u>Filed By</u>
4	01/31/2024		Court of Common Pleas - Philadelphia County
Hearing Notice			
3	02/20/2024		Shaffer, Zachary C.
Defense Request For Continuance For Status of Offer			
3	04/09/2024		Shaffer, Zachary C.
Pre-Trial Conference Held			
1	05/20/2024		Cianfrani, Deborah D.
Order Granting Motion for Continuance			
3	06/04/2024		Court of Common Pleas - Philadelphia County
Hearing Notice			
4	06/04/2024		Cianfrani, Deborah D.
Order Granting Motion for Continuance			
1	08/02/2024		Nelson, Stewart
Motion to Dismiss Pursuant to Rule 600			
1	09/13/2024		Cianfrani, Deborah D.
Guilty Plea - Negotiated			
2	09/13/2024		Cianfrani, Deborah D.
Order - Sentence/Penalty Imposed			
4	09/13/2024		Court of Common Pleas - Philadelphia County
Penalty Assessed			
5	09/13/2024		Court of Common Pleas - Philadelphia County
Release of Prisoner			
Philadelphia Department of Prisons			
09/13/2024			

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<u>Sequence Number</u>	<u>CP Filed Date</u>	<u>Document Date</u>	<u>Filed By</u>
3	09/27/2024		Court of Common Pleas - Philadelphia County
Hearing Notice			
1	10/01/2024		Philadelphia County Adult Probation Unit
Gagnon 2 Summary Filed			
1	10/18/2024		Court of Common Pleas - Philadelphia County
Transferred to CP-47-11-Crim			
1	11/14/2024		Philadelphia County Office of Judicial Records
Entry of Civil Judgment			
1	09/04/2025		Philadelphia County Office of Court Compliance
Payment Plan/Financial Information Submitted			
1	04/29/2026		Philadelphia County Office of Court Compliance
Mail Returned			

PAYMENT PLAN SUMMARY

<u>Payment Plan No</u>	<u>Payment Plan Freq.</u>	<u>Next Due Date</u>	<u>Active</u>	<u>Overdue Amt</u>
<u>Responsible Participant</u>			<u>Suspended</u>	<u>Next Due Amt</u>
Nelson, Stewart	Monthly	10/03/2025	Yes	\$771.94
			No	\$771.94
Payment Plan History:				
	<u>Receipt Date</u>	<u>Payor Name</u>	<u>Participant Role</u>	<u>Amount</u>

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CASE FINANCIAL INFORMATION

Last Payment Date:

Total of Last Payment:

Nelson, Stewart Defendant	<u>Assessment</u>	<u>Payments</u>	<u>Adjustments</u>	<u>Non Monetary Payments</u>	<u>Balance</u>
Costs/Fees					
ATJ	\$6.00	\$0.00	\$0.00	\$0.00	\$6.00
Booking Center Fee (Philadelphia)	\$175.00	\$0.00	\$0.00	\$0.00	\$175.00
CJES	\$2.50	\$0.00	\$0.00	\$0.00	\$2.50
Commonwealth Cost - HB627 (Act 167 of 1992)	\$25.90	\$0.00	\$0.00	\$0.00	\$25.90
Costs of Prosecution - CJEA	\$50.00	\$0.00	\$0.00	\$0.00	\$50.00
County Court Cost (Act 204 of 1976)	\$37.80	\$0.00	\$0.00	\$0.00	\$37.80
Crime Victim Services and Compensation (Act 77 of 1992)	\$60.00	\$0.00	\$0.00	\$0.00	\$60.00
DNA Detection Fund (Act 185-2004)	\$250.00	\$0.00	\$0.00	\$0.00	\$250.00
Domestic Violence Compensation (Act 44 of 1988)	\$10.00	\$0.00	\$0.00	\$0.00	\$10.00
Firearm Education and Training Fund	\$5.00	\$0.00	\$0.00	\$0.00	\$5.00
JCPS	\$21.25	\$0.00	\$0.00	\$0.00	\$21.25
Judicial Computer Project	\$8.00	\$0.00	\$0.00	\$0.00	\$8.00
OAG - JCP	\$2.50	\$0.00	\$0.00	\$0.00	\$2.50
State Court Costs (Act 204 of 1976)	\$17.30	\$0.00	\$0.00	\$0.00	\$17.30
Civil Judgment/Lien (Philadelphia)	\$100.69	\$0.00	\$0.00	\$0.00	\$100.69
Costs/Fees Totals:	\$771.94	\$0.00	\$0.00	\$0.00	\$771.94
Grand Totals:	\$771.94	\$0.00	\$0.00	\$0.00	\$771.94

** - Indicates assessment is subrogated